

The Court finds that the District's duty to supervise under *Education Code* §44807 and potential immunity from liability under *Education Code* §44808, are directly related and whether the Court finds that there was no duty under *Education Code* §44807 (for incidents that occur while on school campus), does not in itself absolve the District from liability (for incidents that occur while off school campus). Under *Education Code* §44808 that Section "grants a district immunity unless a student was (or should have been) directly supervised during a specified undertaking." See, *Wolfe v. Dublin Unified School District* (1997) 56 Cal.App.4th 126, 129; *Doe v. Mount Pleasant Elementary School Dist.* (2025) 113 Cal.App.5th 1208, 1217, 1222-1223. Here, the Court finds that Defendant has failed to meet its initial burden regarding the immunity set forth in *Education Code* §44808, specifically by failing to show no triable issue of material fact exists as to whether that the outdoor science program was not a school-sponsored activity off the premises of the school, or the District otherwise specifically assumed such responsibility or liability. The Motion is therefore denied in this regard.

The workers' compensation exclusivity rule is an affirmative defense which is the defendant's burden to prove. *Doney v. Tambouratgis* (1979) 23 Cal.3d 91, 96. Here, the Court finds that the District has failed to meet its initial burden to show that no triable issue of material fact exists as to whether Plaintiff was an employee whose exclusive remedy lies in workers' compensation, and the action barred by the exclusive workers' compensation remedy provisions of the *Labor Code*. The Motion is denied in this regard.

Finally, as to the Federal Enclave issue, the Court find that 28 USC §5001(b) incorporates California law to govern personal injury claims arising on federal land within the state and because California law recognizes emotional distress as a compensable personal injury - without requiring physical injury - such injuries are covered under the statute. The Motion is thus denied on this basis.

The Motion for Summary Judgment/Summary Adjudication by Defendant Chico Unified School District is denied in its entirety. Counsel for the Plaintiff shall submit a form of order consistent with this ruling within two weeks.

6. 25CV00636 INGRAHAM, STEPHANIE ET AL V. RICKERTSEN, TYLER

EVENT: Motion to be Relieved as Counsel

The Motion to Be Relieved as Counsel is granted, and Steve Simblin is relieved as counsel for Plaintiff Lupita Valdovinos. The Court will utilize the form of order submitted by counsel with modification to Paragraph 5, to indicate that the Order is effective upon the filing of the proof of service of the signed order upon the client.

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7. 25CV02891 JANE DOE CFL V. CHICO UNIFIED SCHOOL DISTRICT

EVENT: Plaintiff's Motion to Compel California Commission on Teacher Credentialing to Produce Records Subpoenaed by Plaintiff

It appears to the Court that while a substantive opposition was submitted for filing by the Subpoenaed Non-Party Commission on Teacher Credentialing, Mary Vixie Sandy, Executive Director, it was rejected by the Court on May 26, 2026, due to a misidentification of the Plaintiff in the caption. Currently, there is no opposition in the Court's file, although based on the Reply, it does appear that the substantive opposition was timely served. The Court continues this matter to July 15, 2026 to allow the Subpoenaed Non-Party to resubmit for filing their Opposition.